DEMOCRACY MATTERS
Making democracy grow between elections

November 25, 2025

Mr Jerome Laxale MP
Chair, Joint Standing Committee on Electoral Matters
Australian Parliament House

Dear Mr Laxale and JSCEM Committee members

Inquiry into 2025 Federal Election

Thank you for the opportunity to make a submission on the important topic of the operation of federal elections.

Democracy Matters is a non-partisan service that educates people for democracy. We equip early voters, elected representatives and teachers with the skills and confidence to create a democratically literate, engaged and inclusive society. Democracy is a skill, a habit, a practice to be used at, and between, elections.

Democracy is under pressure

In 2025, Australian democracy faces far greater tests than in the previous fifty years.

Some of the tests are from external sources, as noted by Mike Burgess AM, Director General of Security (ASIO) in his 2025 Lowy Lecture earlier this month. Mr Burgess described the external security threats that are wilfully damaging our social cohesion and how this disruption is in turn amplifying security threats. This 'threat cycle' is intended to undermine democracy here and in the countries we trade with, who we rely on for security arrangements and seek to have significant regional agreements with.

A major internal test for democracy is the number of Australian citizens who do not understand the democratic processes operating around them and why these processes matter to them. This makes our community vulnerable to external misinformation/disinformation campaigns and online conspiracy theories. Mike Burgess described the current context society operates with an

internet that has become the *'greatest incubator of grievance narratives… disaffection, misinformation.. While the internet incubates (grievances), social media accelerates (grievances)*.'[1]

We cannot assume that our liberal, parliamentary democracy will remain unaffected by such external or internal tests. This submission proposes actions that are necessary for ensuring our core institutions and processes are fit for purpose in an increasingly unpredictable domestic, regional and global context.

Federal parliamentarians need to share the 'trust' load

Australians report very high degrees of trust in both the conduct and results of our federal elections. This is largely because of the independence and integrity of the Australian Electoral Commission. Elected representatives and federal parliament benefit from the trustworthiness of the AEC, however the AEC faces the threats outlined above and needs greater support.

Federal parliamentarians need to actively uphold the high levels of trust in federal elections generated by the AEC. Lying in election campaigns, deliberately airing emotive and polarising claims, making election promises that have not been costed nor can be tested if they are announced just before the media blackout - each of these actions undermines the AEC's work to deliver trustworthy elections.

The results of the last two federal elections with more than 30% of voters backing independent and minor parties is a clear message that voters expect more from the candidates standing for the major political parties.

Australian federal election history tells us when 25% of voters turn away from the major parties, the Australian political system undergoes major structural changes. This 'fault line' is a rare event, occurring only three times since federation (1901, 1931 and 1943) until the 2016 federal election when the 'rupture' has occurred twice:

- 2016 federal election - 'a warning light started blinking deep amber, with a primary vote of 23 per cent for the minor parties in the House of Representatives.'[2]
- 2022 federal election - one in three voted for independents and minor parties which leading political researchers described as a 'tipping point', signalling that Australia's

[1] https://www.asio.gov.au/asio.gov.au/resources/speeches-and-statements/2025-lowy-lecture
[2] https://www.smh.com.au/politics/federal/politics-at-tipping-point-as-one-in-four-voters-flee-labor-and-the-coalition-20170317-gv0a25.html by Damien Murphy

longstanding and very stable two-party system was 'finally on its way out'.[3]

- 2025 federal election - 34% of voters backed independents and minor parties, the highest departure from the major parties since the emergence of the two-party system.[4] For the first time at the national level, minor parties and independents collectively received more votes than the Liberal-National Coalition, which received 32%.[5]
- At no time in the 35-year history of the longitudinal Australia Electoral Study (AES) has there been such a low level of support for either major party among younger voters.[6]

The AES report on the 2022 federal election highlighted 'increasing voter volatility':
"As the traditional social bases of the major parties have gradually changed, so too have the political ties that have bound voters to parties. Around one in four voters say they don't have an attachment to a political party, the highest figure ever recorded in the AES. The proportion of voters who considered voting for another party during the election campaign, at 36 per cent, has at no time been higher.

This is reflected most dramatically in the proportion of voters who said they had always voted for the same party. In 1967 this figure was 72 per cent, and in 2022 it declined to an all-time low of 37 per cent."[7]

The 2025 election confirms that the fault line in Australian electoral politics has shifted from 'left v right' to 'major v minor'. This 'structural unbundling' is clearest in the House of Representatives where 'safe seats' are no longer a given, polling fails to predict election outcomes and historic orthodoxies about 'the parties of government' no longer hold.

Voter volatility can also be found in the AEC's 2025 federal election report which highlighted the growing complexity of the count in the House of Representatives. 11 seats were decided on first preferences while 88 of the total 150 House of Representatives electorates required a full distribution of preferences before results could be declared – a significant increase compared to

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[3] *Watershed: The 2022 Australian Federal Election* by Anika Gauja, Marian Sawer and Jill Sheppard chrome-extension://efaidnbmnnnibpcajpcglclefindmkaj/https://press-files.anu.edu.au/downloads/press/n11054/pdf/ch01.pdf

[4] Op cit Gauja, Sawer and Sheppard

[5] https://australiainstitute.org.au/post/the-2025-federal-election-is-the-first-where-a-major-party-received-fewer-votes-than-independents-and-minor-parties/

[6] https://theconversation.com/what-explained-the-seismic-2022-federal-election-the-australian-election-study-has-answers-195286

[7] https://reporter.anu.edu.au/all-stories/what-explained-the-seismic-2022-federal-election-the-australian-election-study-has-answers

2022 (76 electorates) and 2019 (34 electorates).[8] This is another indicator that federal elections are changing in unprecedented ways and stakeholders need to respond or be left behind by changes in voter behaviours.

The 2025 federal election was an opportunity to see how candidates, political parties, their traditional organisational support base and party members were responding to the fracturing of political orthodoxies from the realignment from 'left v right' to 'major v minor'. The 'win at any cost' nature of elections is likely to be a major factor driving 'the purported increase in incidents of aggressive conduct, deliberate obstruction, and intimidating behaviour towards voters, political participants, volunteers, and Australian Electoral Commission (AEC) officials'.

2024 was a 'mega-election year' globally with more than half the world going to elections, close on the heels of a divisive and polarising referendum in 2023. Voters don't always distinguish between inflammatory and emotion laden social media posts about overseas versus Australian campaigns. For example, during the Voice referendum in 2023 a small, but significant, number of voters claimed the referendum was illegal because the Governor-General had not issued the writs. Social media posts referred to 'voting machines making results inaccurate', echoing US claims. My own experience of working at the 2022 and 2025 elections, as well as the 2023 referendum, is that more voters attending polling places questioned the AEC's use of pencils, suggesting its 'done so officials can alter votes'.

I do believe there is a direct correlation between the behaviour of candidates, election parties and third party actors and increasing questioning of AEC processes by voters in polling places. The ability of candidates and parties to legally distribute misleading materials at polling places that are designed to discredit opposing candidates gives permission to voters to make spurious claims about candidates but also the AEC processes and workers. Democracy is a social system based on formal and informal norms - if we normalise unethical behaviour from candidates and political parties then we are giving permission to others to follow suit.

Maintaining the efficacy of electoral processes & being accountable for campaign actions
Federal elections are guided by electoral acts, regulations and the institutional norms of the AEC. The introduction of the AEC's disinformation register[9] as well as the 'Stop and Consider' media literacy campaign[10] is in response to the changing circumstances of elections worldwide.

Yet there is scant legislation or regulation applying to the way candidates, political parties or third party organisations conduct themselves. It's legal for candidates and parties to lie in

[8] https://www.aec.gov.au/media/2025/10-01.htm
[9] https://www.aec.gov.au/media/disinformation-register.htm
[10] https://www.aec.gov.au/Elections/electoral-advertising/stopandconsider.htm

election campaigns. Generative AI videos (ie deep fakes) making claims about candidates and elected representatives are permissible at and between elections. In fact, elected representatives and political leaders are more likely to spread dis and misinformation.[11]

How might candidates, political parties and third party organisations change their behaviour to uphold election integrity?

- By passing legislation banning dishonest, inaccurate and misleading electoral materials. Earlier this year Zali Steggall MP tabled an Electoral Communications Bill[12] calling for truth based campaigning. SA and ACT parliaments have legislation regulating false claims in election campaigns. While these laws are criticised for only covering a small number of circumstances, they send a clear message that public office should be respected during election campaigns. The public wants better conduct at elections.

- Booklets distributed to households during referendums should be fact checked. Dis, mis and mal-information at the 2023 referendum was designed to increase social division and polaristaion, not only at the referendum but beyond. Where false claims in referendum booklets undermine voter trust in one electoral process, it diminishes trust in all electoral processes (local, state and federal). This is an unacceptable by-product of state sponsored referendums and the federal parliament needs to prevent this from happening at the next referendum.

Candidates, parties and third party actors need to be held accountable for their conduct during election campaigns. Focusing only on the 'potential reform of safety and security arrangements, including consideration of the powers, processes, and capacity of the AEC to manage and address increasingly threatening or disruptive behaviour' in the absence of understanding the behavioural drivers is a technical fix for a social challenge. While it will have some impact, it won't adequately address the uncertainty generated by changed voting patterns and eternal threats.

Ensuring the voter experience is a positive one

One of the strengths of Australian elections is the celebratory nature of elections with sausage sizzles, cake stalls and the community coming together at polling places on election day. These positive experiences are being overshadowed by aggressive campaign workers and the large numbers of third party campaigners (Exclusive Brethren) at the 2025 election.

[11] https://shows.acast.com/truth-trust-and-democracy/episodes/ep-8-politicians-who-lie-the-welsh-proposal
[12] https://www.zalisteggall.com.au/zali_steggall_mp_reintroduces_the_electoral_communications_bill_2025_on_truth_in_political_ads

Actions that can be taken to ensure positive, safe and trustworthy polling experiences include:

- Adopting the practice of the Tasmanian Electoral Commission prohibiting the distribution of how-to-vote materials within 100 metres from the entrance to polling places. This means voters don't have to 'run the gauntlet' of campaign workers and be pressured or jostled as they enter polling places. This can diffuse antagonistic behaviour between campaign volunteers or third party actors who want to secure voter support. How-to-vote materials are usually distributed via letter boxing and increasingly on social media, so communication with voters is still possible. Local and state elections held during COVID did not permit how-to-vote cards. Candidates found alternative ways to communicate and polling places were calmer places for voters. This could potentially reduce threatening behaviour towards AEC and polling place staff. Voters would need to be alerted to such a change in advance but are capable of adapting, as shown by voters in Tasmania.

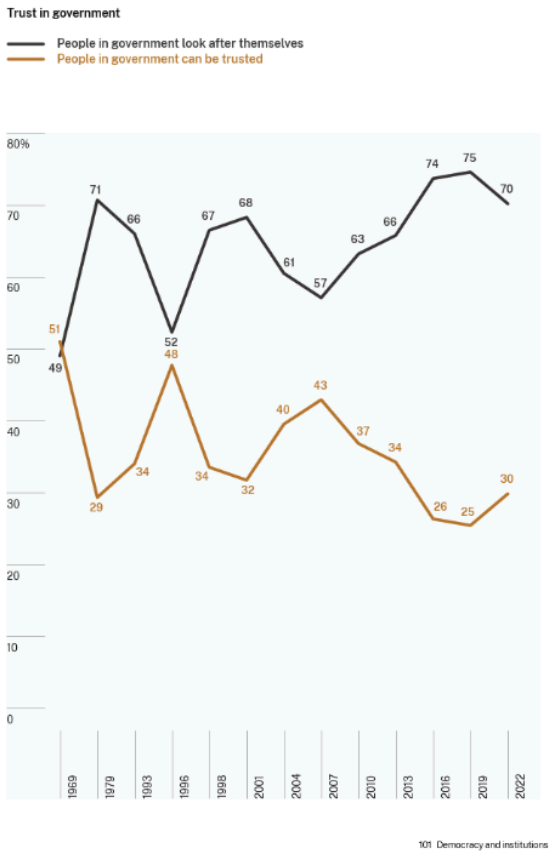
- Pre-poll voting should be made voter-friendly by removing eligibility requirements for early voting, eg an inability to vote on election day because of overseas travel, working on election day or carer commitments. A positive consequence of opening up pre-poll is that candidates/parties would have to declare their policies and election promises in advance of the pre-poll period. This gives voters more time to consider what is being offered, in exchange for their vote. Candidates and parties can use the pre-poll period to answer questions from the public about their policies. Each federal, state and local election is seeing significant increases in the number of voters pre-polling and postal voting, indicating that voters are making their mind up in advance of election day. The electoral process should be adjusted to respond to the feedback voters are giving by this noticeable shift in voting patterns.

- Shifting to fixed parliamentary terms, combined with a set date for federal elections, has multiple benefits for voters and other electoral stakeholders. It would greatly assist the AEC's logistical planning, eg having certainty about when the 100,000 member temporary workforce need be on deck would take considerable pressure off AEC management and make it easier to set training dates to prepare an election workforce capable of enforcing AEC standards and mobilise the range of polling teams required to support voters across Australia and voting from overseas. The AEC would also be able to undertake technology improvements more easily by being able to plan upgrades needed to prevent foreign interference between fixed election dates. There would also be cost savings - in the absence of a fixed election date, the AEC pays premium rents, sometimes for three months at a time, to secure 7,000 polling places via rapid procurement. Voters

would also know in advance, giving them a sense of certainty and helping them have a fixed date to be well informed about their voting options.

Moving to fixed parliamentary terms does require a referendum. Multiparty support for the required referendum should be secured in advance. Joint agreement by parliamentarians across the political spectrum would indicate respect for the election process which legitimates their opposition in parliament. Shared support for fixed terms also shows a willingness to make electoral processes responsive and facilitate the AEC to deliver trustworthy federal elections to a growing population in challenging times.

Maintaining trust between elections



The above graph is from the longitudinal Australian Electoral Study. It tracks the fluctuating nature of trust in government, one of our core democratic institutions which includes parliamentarians and public servants. In my discussions with voters of varying ages, they tell me they hold public office and democratic institutions in very high regard. Their frustration is not with the office but the people in them. Cynicism is one outcome of unprofessional behaviour by office holders. Voters are especially exercised by parliamentarians who do not respect the privilege extended to them as a result of winning an election.

Why does this matter? Professor Nicole Gillespie's work on organisation trust shows that restoring trust in organisations, such as government or the public service, is tougher than repairing interpersonal relationships because of the complex stakeholder needs and diverse post-breach perceptions.[13] Unclear responsibility and external factors complicate organisational trust repair, clearly demonstrated by the ongoing impact of the Robodebt scheme.

The 2022 Royal Commission into the Robodebt Scheme received 1099 public submissions and heard nine weeks of evidence. This reflects the depth of frustration and trauma felt by the community when their institutional trust is breached. Royal Commission evidence demonstrates that stakeholders hold 'distinct interests demanding different repair actions'.[14] Attributing responsibility, and therefore accountability, is further muddied by group dynamics, social media, and the time it takes a government to respond to Royal Commission recommendations. For these reasons, one may doubt that it will ever be possible to restore trust in government to pre RoboDebt times.

Six people were referred by the Robodebt Commissioner of Inquiry to the National Anti Corruption Commission. The mishandling of the initial consideration of the referrals[15] and the inability of the NACC to see the public interest in investigating the referrals is a disturbing red flag declaring a lack of understanding re the central place of trust in democratic cultures. If we think of democracy as a social fabric, trust is the thread the fabric is made from. Without trust, our social fabric and social cohesion gradually falls apart, at a great cost to all.

What can candidates, representatives and political parties do to uphold and strengthen public trust? Actions during federal elections have been outlined above. It's vital that federal parliamentarians are pro-trust between elections as well, for example by committing to professional development on topics such as professional ethics training, principles of administrative decision-making and public leadership in increasing complexity. This demonstrates an understanding of stewardship of public office and parliamentary conventions, aligning them with public perceptions. Ethics training for all elected representatives during each parliamentary term would bring parliamentarians closer to the culture of professional development the public expects of accountants and lawyers.

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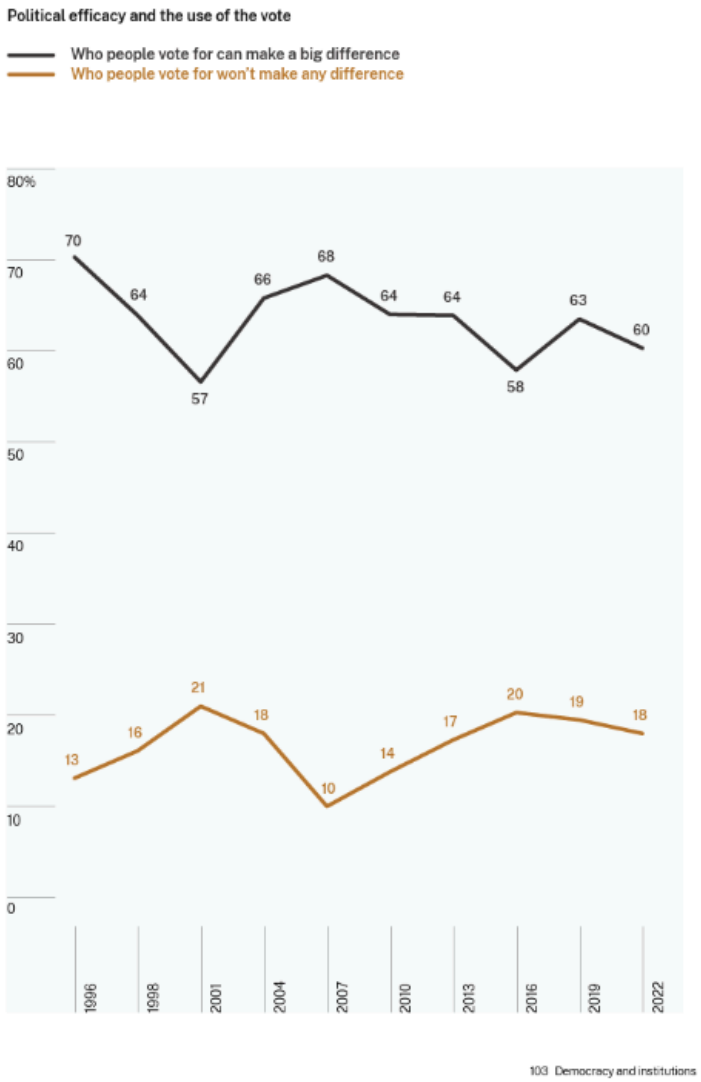
[13] Nicole Gillespie, KPMG Chair in Organizational Trust and Professor at the University of Queensland Business School, Oct 14, 2023 https://www.youtube.com/playlist?list=PL_vXHJPTmK5yA1rQssibh4jArNoxz0oyO
[14] Professor Nicole Gillespie, op cit
[15] https://theconversation.com/nacc-belatedly-to-investigate-whether-six-robodebt-referrals-engaged-in-corrupt-conduct-250145

Young voters are sending early warning signals

Voters aged 18 to 34 are the largest group of voters in Australia, outnumbering Baby Boomers for the first time at the 2025 federal election.[16] They are also a major driver of the seismic shift in the national political landscape:

"These younger generations have different voting patterns to previous generations at the same stage of life, and are also much further to the left in their party preferences. Just 27% of Millennials said they voted for the Coalition in 2022. At no time in the 35-year history of the AES has there been such a low level of support for either major party among younger people."[17]



[16] https://www.abc.net.au/news/2025-05-02/young-voters-influence-key-seats-federal-election-2025/105221508
[17] https://theconversation.com/what-explained-the-seismic-2022-federal-election-the-australian-election-study-has-answers-195286

The 2022 AES graph above partially explains why young people are walking away from the major political parties.

In return for their vote, young voters expect elected representatives to show leadership by acting to resolve the challenges staring generations of young Australians in the face - intergenerational inequality[18], housing affordability, accelerating climate change, rising higher education costs and more. In the absence of such leadership which is felt as a breach of trust, young people are more likely to disconnect and disengage.

Young voters are sending early warning signals that parliamentarians need to innovate rather than persist with business as usual at elections and between them.

Calling for parliamentary innovation

This submission has canvassed issues outside of federal elections because you cannot separate elections from the rest of our democratic ecosystem. A loss of trust in one part of the system ripples across the rest. Everything is connected.

Voters, especially young voters, expect parliamentarians to role model collaborative problem solving and negotiation rather than kicking difficult challenges down the road for future parliaments to solve.

The 'major vs minor' faultline that emerged in the 2022 and 2025 federal elections is feedback from the electorate to the elected. Parliamentarians who persist with business as usual are failing to recognise the moment we are in, which is one of increasing national, regional and global instability.

Disruptions are also opportunities for innovation, for experimenting our way forward by listening to the community and the experts with deep, non partisan understanding of a legitimate evidence base.

The innovations suggested in this submission are intended to create a supportive environment for elected representatives willing to work hard to understand and solve the challenges facing current and future generations of voters.

Accountability is the flipside of the trust coin. Elected representatives who commit to creating the social, economic, legal and institutional conditions needed to support innovations will send

[18] https://www.abc.net.au/news/2025-07-13/economist-warns-about-intergenerational-wealth-in-australia/105517036

a message to the voters that they have received the feedback the electorate is sending at election time. There is a great deal at stake.

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